Township of NIPISSING
"Life the way it should be" 1888

The Corporation of the Township of Nipissing
45 Beatty Street
Nipissing ON P0H 1W0
Telephone 705-724-2144 Fax 705-724-5385
www.nipissingtownship.com

REPORT TO COUNCIL

Date: December 20, 2022

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Shore Road Allowance Application – Dickinson/Duggan – Birchgrove Drive

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BACKGROUND/OVERVIEW

On August 16, 2022 Council passed Resolution R2022-153 approving "in principle" the Application to purchase the Shore Road Allowance located in front of Pt Broken Lot 11, Con 19, Township of Nipissing.

The original presentation of the proposal was provided by the applicant's agent, Paul Goodridge to Council on July 12, 2022 at a regular Council meeting. During the presentation, Council received information on the proposed "swap" of land to allow for continued public and emergency services use of an existing access point to Lake Nipissing found to be located on the Applicant's property following the registration of Plan 42R-21838.

The continued use and access of this location was a large consideration in Council's decision on August 16, 2022.

Following the receipt of a letter from the Applicants' solicitor on December 6, 2022, staff conducted a review of the site and discovered an alternate site for access to the lake utilizing municipal property and creating a safer entrance from the municipal parking area designated on the corner of Rocky Shore Drive and Birchgrove Drive.

Council received the letter from the applicants' solicitor at the December 6, 2022 Council meeting and provided direction to the Municipal Administrator to have the alternate access point created to alleviate the use of private property by the public, addressing the concerns provided in the letter.

FINANCIAL IMPACT

Installation of an alternate access from the Rocky Shore Road/Birchgrove Road municipal parking area will have a minimal financial impact as items currently located at the public works yard and stockpiled fill. Signage will be required.

SUMMARY

Considerable public input has been shared with members of Council regarding the sale of the Shore Road Allowance at this location since August 16, 2022.

As the file has not yet progressed to incur legal or environmental consultant fees, Council may wish to revisit the item for discussion and consideration of the new proposal not including the transfer of the previous lake access point to the municipality.

RECOMMENDATION:

That Council review the file and provide the applicant with an update stating that the property offered for transfer will no longer be required and should be removed from the proposal.

Council may also move to Reconsider Resolution R2022-153, which approved the Application "in principle". If Council rescinds the original Resolution, it is recommended that the Application Fee be refunded.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

If there is a tie vote, the Resolution will be defeated.

When the question under consideration contains multiple options/issues, any Member can request the Resolution to be split and each option/issue to be voted on separately without requiring a separate Resolution.

2.19 A Resolution containing a minor typographic error may be corrected on the request of the mover and seconder and the correction shall be made in writing on the face of the Resolution and initialed by the mover and seconder.

2.20 The following rules shall apply to amendments to Resolutions:

a. an amendment to a Resolution is a change to the question asked in the Resolution;
b. only one amendment at a time can be presented to the Resolution;
c. only one amendment can be presented to an amendment;
d. when an amendment to a Resolution has been decided upon, another may be introduced;
e. the order of the voting shall be:
    i. an amendment to an amendment shall be voted upon;
    ii. an amendment to a Resolution shall be voted upon next, and
    iii. the Resolution, as amended, shall finally be voted upon.

An amendment which is simply a rejection of the Resolution will not be permitted.

2.21 When a Resolution has been decided, any Member who voted with the majority can move for the matter to be reconsidered. The Mayor or Chair may ask the Member to confirm that they voted with the majority.

Before a Resolution to reconsider is heard, the Resolution to reconsider must be added to the Agenda. The Resolution to reconsider shall only be added to the Agenda upon Council's approval.

The process whereby a Motion to Reconsider is added to the Agenda is set out below:

a. A Member who voted in the majority shall move for the Resolution to reconsider to be added to the Agenda;
b. The Chair shall ask the Member to affirm that they voted with the majority;
c. The Chair shall hold a vote whereby the Members shall vote on whether to allow the Resolution to reconsider to be added to the Agenda;
d. When the Member is moving to have the Resolution to reconsider added to the Agenda of the same Meeting as that at which the Motion was originally voted on, **the majority** of Members must agree to add the Resolution to reconsider to the Agenda.
e. Where the Member is moving to have the Resolution to reconsider added to the Agenda of a Meeting other than that at which the Resolution was originally voted on, **a 2/3 majority** must agree to add the Resolution to reconsider to the Agenda.
f. Once the Resolution to reconsider is added to an Agenda, the Motion to Reconsider follows the same process as all other Motions.
g. No Resolution shall be reconsidered more than twice in the same calendar year.
h. A Resolution to reconsider of any decided matter shall not operate to stop or delay an action on the decided matter.
i. Debate on a Resolution to reconsider must be confined to reasons for or against reconsideration.